

and immediately laid out; but as this was impossible, it would be sufficient to compute interest at 4 per cent." (a).

(D) **Rate after the death of the tenant for life.**— "That such interest was only to be paid till the widow's death, for after that her executors had the demand upon the remainderman, and it became a common debt, and must carry simple interest only" (b).

(E) **Case of tenant for life having had no enjoyment.**— "With respect to the second renewal, as the widow had not lived to enjoy any part of that term, her executors were entitled to the whole of the expenses, with interest to be computed on the same principle as before" (c).

6. **Risk of losing the contribution.**— In this case, it will be observed, the *tenant for life* had disbursed the fine and, the payment being a charge upon the property, the widow was in no danger of eventually losing her demand. But where the tenant for life has not the means of renewing, but the remainderman comes forward with the money, if the contribution is to be suspended till the death of the tenant for life, it may happen, that, when the proportions can at last be ascertained, the estate of the tenant for life may be insolvent, and so the contribution be lost. "I admit," says Lord Eldon, "there is this difficulty in the case; but perhaps from the nature of the thing it cannot be helped: the utmost extent you can go to is to make the tenant for life give security for the sum which may eventually be due" (d).

7. **How the rule to be applied to leaseholds for lives.**— There occurs, also, this further difficulty, viz. how to apply the principle to the case of leaseholds for *lives*. The new *cestui que vie* may die in the lifetime of the original *cestui que vie*, and then no actual benefit accrues either to the tenant for life or to the remainderman. If the tenant for life paid the fine, is the remainderman to contribute nothing, because he took no benefit? If the remainderman paid the

(a) See *Giddings v. Giddings*, 3 Russ. 260.

(b) See *Giddings v. Giddings*, 3 Russ. 260; *Bradford v. Brownjohn*, 3 L. R. Ch. App. 711.

(c) *Coppin v. Fernyhough*, 2 B. C. C. 291.

(d) See *White v. White*, 9 Ves. 558, 559; *Earl of Shaftesbury v. Duke of Marlborough*, 2 M. & K. 122.